



Appeal Decision

by B Plenty BSc (Hons) DipTP MRTPI

Site visit made 11 August 2026

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6006144

40 West Way, Poole BH18 9LS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by M Handscombe against the decision of Bournemouth Christchurch and Poole Council.
 - The application Ref is P/25/04279/FUL.
 - The development proposed is Sever land and erect a dwelling (self-build) with new vehicular access off West Way.
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Decision

1. The appeal is dismissed.

Preliminary matters

2. A previous scheme for a dwelling to the rear of 40 West Way was dismissed at appeal in 2025. The proposal was a two-storey flat roofed design, clad in large panels. The Inspector found that the scheme would be out of character and incompatible with the surrounding area. The proposal has been revised since that decision with a substantially different design and is materially different, as such (although mindful of the previous scheme) I shall consider the proposed scheme on its own merits.

Main Issues

3. The main issues are:
 - The effect of the proposed dwelling on the character and appearance of the area,
 - The effect of the proposal on the living conditions of occupiers of 40 West Way (No 40), with particular regard to outlook,
 - Whether the proposed dwelling would provide suitable living conditions for future occupiers with regard to access to sunlight and daylight,
 - The effect on the integrity of the Dorset Heathlands Special Protection Area (SPA) and Site of Special Scientific Interest (SSSI), and
 - The effect on the integrity of the Poole Harbour SPA and Ramsar site.

Reasons

Character and appearance

4. West Way is a suburban residential cul-de-sac. Housing is detached and stands within relatively generous plots with deep rear gardens, open plan frontages and generous spacings. The footways are set away from the carriageway with grass verges and street trees creating a strong sense of verdant spaciousness. Houses are traditional in design with shallow pitched roofs and largely brick cladding, with some being partially rendered. The appeal site is a corner plot near the terminus of the road, adjacent to a wider turning head. Having an open frontage and deep plot, the site makes a positive contribution to the character and appearance of the area.
5. The proposed dwelling would access the highway from the side of the appeal site, which is currently a heavily landscaped boundary of tall trees and hedges. As the rear garden of the host dwelling is on a steep gradient, the proposal would include first floor access to the rear garden. From the street, part of the proposal's ground floor would be behind a retaining wall. Nonetheless the proposed dwelling would substantially alter the appearance of the street through its overall mass and by the removal of the existing thick landscaped boundary.
6. The current plot is relatively long, but tapers to its rearmost and highest point. As such, the proposed dwelling would sit within the tapering part of the rear garden. As a result, this would appear constrained and would sharply contrast with the prevailing character of plots sizes in the immediate area. Although the appellant refers to the proposal as a sensitive infill, the new plot would be uncharacteristically small. This effect would be emphasised by its streetscene appearance in failing to suitably address the street, being partially concealed by topography and retaining features.
7. The LP does not prescribe minimum plot sizes and seeks high densities to be achieved on plots within transport corridors, such as found here. However, such objectives would not over-ride the requirement for development to be sympathetic to local character. The appeal site is a triangular area and not a regular shape as seen on most other plots within the area. Whilst plot sizes are not uniform in shape, they are relatively consistent in area. As such, the site is not of a consistent shape or with the prevailing character of plots within the area. Accordingly, the proposal would not integrate well with the area and would not reflect the prevailing pattern and spacious character of the area.
8. Turning to design, the proposed dwelling would include a pitched roof and have a footprint and overall scale that would be comparable with the host dwelling and nearby development. The proposal would have a roof pitch that would replicate local examples and would be of traditional form.
9. In terms of materials, it is proposed for the dwelling to be clad in facing brick and vertical timber cladding. Weatherboarding has been used elsewhere within the estate, although not predominantly. As such, the use of timber cladding would not appear extraordinary in appearance, especially when employed on the proposed development within its relatively screened location. Although the proposed brick would be grey, which would not be typical of the area, this could have been revised by the imposition of a planning condition for a more appropriate colour of brick.

10. Nonetheless despite its acceptable design, due to its cramped appearance, the proposal would fail to integrate well with the character and appearance of the area. It would therefore conflict with policies PP27 and PP28 of the Poole Local Plan [2018](LP) regarding the effect on character and appearance. These seek, among other matters, for development to reflect local patterns of development and where plot subdivisions would enable a layout of development to preserve an area's residential character.

Living conditions - existing

11. The rear elevation of No 40 includes a range of windows that serve habitable rooms. The outlook from these currently take in the rear garden, which rises to the rear boundary by about 4 metres. The change in levels, and heavily planted side boundaries, create a strong sense of enclosure to side views and seem to place a greater reliance on a clear rear outlook. The proposed dwelling would be embedded into the garden slope, meaning that the ground floor of both dwellings would be largely level, with the proposed dwelling being only marginally higher. The separation distance from the rear wall of No 40 to the flat roof garage would be around 9m and to the two-storey side elevation around 12m.
12. The side elevation of the proposed dwelling would have one high level window that is proposed to be obscurely glazed, preventing overlooking. The proposed side elevation would be wider than the rear elevation of No 40 and would subsequently occupy most the field of vision for existing occupiers. This relationship would not reflect the general arrangement of plots in the area due to the proposed dwelling's width and proximity. The Council has not drawn my attention to any standards that would be breached by the proposal, but the separation distance between these dwellings would be insufficient to prevent the proposal being substantially overbearing as experienced by occupiers of No 40.
13. Accordingly, the proposal would cause material harm to the living conditions of occupiers of No 40 with respect to outlook. Accordingly, the proposal would conflict with LP policy PP27, with respect to effect on living conditions. This includes requiring development to not result in a harmful impact on amenity.

Living conditions – proposed

14. The proposed dwelling would have bedrooms at ground floor and place the main living spaces above. Due to its relationship with surrounding properties windows are only on the northeast and northwest elevations. Being north facing the rooms would receive only limited direct sunlight. Due to the position of the cantilevered balcony, bedrooms 1 and 2 would receive reduced daylight despite having full height windows and being adjacent to a terraced garden recess.
15. Although bedrooms are less important to gain good levels of sunlight and daylight, they remain habitable rooms where occupiers would expect good quality space. Due to the stepped garden terrace, a reasonably adequate outlook would be achieved, with good access to daylight, a view shared by the previous Inspector.
16. LP policy PP37 requires the orientation and design of development to make use of passive design features to minimise the need for artificial light, heating and cooling and maximise solar gain. The design features incorporated would ensure that the internal layout, proposed within the scheme, would provide a reasonable standard

of accommodation. This would therefore limit its reliance on artificial means to provide light and warmth.

17. As a result, the proposal would create acceptable living conditions that are not reliant on artificial light and heating. Consequently, the proposal would comply with LP policy PP37. This seeks, among other matters, for development to contribute to tackling climate change by influencing the orientation and design of development.

Dorset Heathland and Poole Harbour SPAs

18. The appeal site is in the zone of influence of the Dorset Heathland SPA and SSSI and the Poole Harbour SPA (*the European sites*). Given the proximity of the development to the SPAs, it is likely that its contribution to the increase in population could lead to an increase in visitor and recreational pressure within these SPAs.
19. The appellant explains that Reasons for Refusal 4 and 5 would be addressed by the submission of a Legal Agreement. However, no such legal mechanism is before me to address these matters. Although the Council state a financial obligation, in line with its established mitigation strategies, would be appropriate to mitigate the effect there is no certainty that the payments could be secured. In the absence of such a mechanism the proposal provides no certainty that the scheme would not adversely affect the integrity of the European sites.
20. As a result, I cannot be satisfied that the proposal would not adversely affect the integrity of the Heathland SPA and Poole Harbour SPA to address the habitat regulations. This would therefore cause conflict with LP Policies PP32 and PP39. These require development, among other matters, to mitigate the adverse effects of development within the zone of influence of the Dorset Heathlands SPA and to avoid harm to Poole Harbour SPA.
21. Furthermore, the Council informs that Poole Harbour has been designated as a nutrient sensitive catchment for both nitrogen and phosphorus. As a result, development must be supported with a nutrient neutrality calculator and developer credit purchases, identified through a Nutrient Neutrality Statement (NNS). In the absence of a NNS the effect on nutrient loading cannot be determined and therefore further adverse effects on the Poole Harbour SPA cannot be ruled out. This matter has not been explored further as I am dismissing for other reasons.

Other Matters

22. The proposal is described as a self-build dwelling, providing an exemption for the need to deliver a 10% Biodiversity Net Gain. However, no legal mechanism is in place to secure the scheme as such. Accordingly, the BNG requirement would need to be met had I been minded to allow the appeal. I have not pursued this matter further. Furthermore, on this basis the benefits of the proposal in providing a self-build dwelling are of limited weight only.

Planning balance and Conclusion

23. I have concluded that the proposal would conflict with development plan LP policies PP27, PP28, PP32 and PP39. I give this conflict significant weight. Therefore, despite the benefits of the proposal and supportive policies of the Plan including compliance with LP policies PP2, PP34 and PP37, it would conflict with the development plan when taken as a whole. Planning law requires that applications

for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise.

24. The National Planning Policy Framework (2026) (the Framework), at policy H07, requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community. This is especially pertinent in a district where the Council is not meeting its required 5-year supply of housing land, such as in this case with a provision of only 2.55 years (as at 9 March 2026).
25. Furthermore, Policy S03 of the Framework applies a presumption in favour of sustainable development. Policy S04, for development within a settlement, states that such development should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies of the Framework.
26. The appeal site is within a settlement, and the proposal would provide a dwelling, in a sustainable transport corridor. The site is within walking distance of bus routes that would provide easy access to the town centres of Poole and Bournemouth. These sustainable locational benefits of the site are consistent with the Framework which seeks development to support sustainable patterns of movement, enabling good accessibility for different users and make the most of existing and proposed transport infrastructure, which weigh in favour of the scheme.
27. Nonetheless, the proposal would not be consistent with the overall streetscene, in conflict with policy L2(1)(d)(i) of the Framework. The scheme would also create poor living standards for existing residents, in terms of effect on outlook, as sought by the Framework's policy L2(1)(d)(ii), resulting in the creation of unacceptable living standards. Furthermore, the adverse effects on the European sites would conflict with policy N6(1)(a)(i) which requires development that would affect habitat sites to be refused unless an AA has concluded that the proposal would not adversely affect the integrity of the site.
28. In this instance, the benefits of the proposed development, would be substantially outweighed by the identified adverse effects of the proposal, when assessed against the national decision-making policies of the Framework as a whole. As such the presumption in favour of sustainable development would not apply. Accordingly, the identified conflict with the development plan would not be outweighed by the material considerations and the appeal is dismissed.
29. For the reasons given above the appeal is, therefore, dismissed

B Plenty

INSPECTOR